

**IN THE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH**

CRM-M-33670-2026

Date of decision: 12.06.2026

Satpal Singh and another

...Petitioners

Versus

State of Punjab and others

...Respondents

CORAM: HON'BLE MR. JUSTICE DEEPAK GUPTA

Present: Mr. D.S. Randhawa, Advocate for the petitioners.

DEEPAK GUPTA, J. (ORAL)

By way of the present petition filed under Section 528 of the Bharatiya Nagarik Suraksha Sanhita, 2023, the petitioners seek issuance of directions to respondent No.2 to take appropriate legal action on their representation dated 16.03.2026 (Annexure P-4) and to register a criminal case against private respondents No.4 to 7 and other unknown persons.

2. Learned counsel for the petitioners submits that a dispute regarding agricultural land is pending between the parties and an injunction order has already been passed by the competent Civil Court in favour of the petitioners. It is contended that despite the subsistence of the said order, the private respondents forcibly entered upon the disputed land and violated the injunction granted by the Civil Court. Learned counsel submits that proceedings under Order XXXIX Rule 2-A CPC have already been initiated by the petitioners before the Civil Court for alleged violation of the injunction order.



3. It is further submitted that on 09.03.2026, taking advantage of the absence of the husband of petitioner No.1, respondents No.4 to 9 along with certain unidentified persons allegedly came to the residence of the petitioners armed with weapons, created terror in the locality and started pelting stones at their house. Complaints in this regard were allegedly submitted to the In-charge, Police Post Mandi Ladhu Ka, but no action was taken. Thereafter, representation dated 16.03.2026 (Annexure P-4) was submitted to respondent No.2 seeking registration of an FIR against the alleged culprits. Since no action has been taken thereon, the present petition has been filed. Reliance has been placed upon the judgment of the Hon'ble Supreme Court in ***Lalita Kumari versus Government of Uttar Pradesh and others, 2013(4) RCR (Criminal) 979.***

4. Upon a specific query put by the Court, learned counsel for the petitioners fairly concedes that neither any application has been moved before the jurisdictional Magistrate seeking appropriate directions nor has any criminal complaint been filed before the competent Court till date.

5. I have heard learned counsel for the petitioners and perused the paper-book.

6. The principal relief sought in the present petition is a direction for registration of an FIR and initiation of criminal proceedings against the private respondents. However, the law on the subject is no longer res integra. The Hon'ble Supreme Court in ***Sakiri Vasu v. State of U.P. and others, (2008) 2 SCC 409***, has categorically held that where a person is ag-



grieved by non-registration of an FIR, the Code itself provides an efficacious and complete mechanism for redressal of such grievance. The first remedy is to approach the superior police authorities and, if the grievance still persists, the aggrieved person can invoke the jurisdiction of the Magistrate empowered to act in accordance with law. The Hon'ble Supreme Court has further observed that a person can also institute a private complaint before the competent Magistrate and, therefore, ordinarily should not directly invoke the extraordinary jurisdiction of the High Court seeking a direction for registration of an FIR.

7. The rationale behind the aforesaid principle is that the Magistrate is vested with adequate powers to examine the allegations, call for a report, direct investigation wherever warranted and take cognizance of the offence in accordance with law. Consequently, where such statutory remedies are available and have not been exhausted, this Court would ordinarily decline to entertain a petition seeking direct intervention.

8. In the present case, admittedly, the petitioners have not availed the remedy before the jurisdictional Magistrate. The mere fact that representations were submitted to the police authorities would not justify bypassing the statutory mechanism specifically provided under the criminal law. The existence of a pending civil dispute between the parties and the proceedings under Order XXXIX Rule 2-A CPC further indicate that certain aspects of the controversy are already engaging the attention of the competent Civil Court.



9. It is also settled that the judgment in *Lalita Kumari* (supra) does not dilute the principle laid down in ***Sakiri Vasu* (supra)** regarding the availability of alternative statutory remedies. The appropriate course for an aggrieved person, in a case where the police fail to act on the complaint, is to approach the Magistrate in accordance with the procedure prescribed by law.

10. In view of the aforesaid legal position and without expressing any opinion on the merits of the allegations levelled by the petitioners, this Court is not inclined to exercise its jurisdiction under Section 528 of the BNSS, 2023.

11. Consequently, the present petition is disposed of with liberty to the petitioners to avail the alternative remedies available to them under law before the competent Magistrate, in terms of the principles laid down by the Hon'ble Supreme Court in ***Sakiri Vasu v. State of U.P. and others* (supra)**.

12. It is clarified that if such remedy is availed, the same shall be considered and decided by the competent Court strictly in accordance with law, uninfluenced by any observation made herein.

12.06.2026

Yogesh

(DEEPAK GUPTA)
JUDGE

Whether speaking/reasoned:- Yes/No
Whether reportable:- Yes/No